

The Electricity Service Commission, U.P. State Electricity Board (Limitation of Functions) (First Amendment) Regulations, 1979

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Rule

THE-ELECTRICITY-SERVICE-COMMISSION-U-P-STATE-ELECTRICITY-BOARD-LIMITATION-OF-FUNCTIONS-FIRST-AMENDMENT-REGULATIONS-1979 of 1979

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The Electricity Service Commission, U.P. State Electricity Board (Limitation of Functions) (First Amendment) Regulations, 1979

Published vide Notification No. 4583-NG/SEB-4-79-330-NG-75, dated October 9, 1979, published in U.P. Gazette, Part 1-Ka, dated 29th December, 1979

In exercise of the powers under clause (c) of Section 79 of the Electricity Supply Act, 1948, the U.P. State Electricity

Board hereby makes the following regulations to amend the Electricity Service Commission. U.P State Electricity Board (Limitation of Functions) Regulations, 1978.

1.

Short title and commencement.

- (i) These Regulations may be called the Electricity Service Commission, U.P. State Electricity Board (Limitation of Functions) (First Amendment) Regulations, 1979.

(ii)

They shall come into force from such date as may be notified by the Board in this behalf.

2.

Amendment of Regulation.

- In the Electricity Service Commission, U.P. State Electricity Board (Limitation of Functions) Regulations, 1978, for Regulation 3, the following regulation shall be substituted :

3.

The Commission shall be consulted for :

(1)

direct recruitment to all posts in Class III, the minimum of whose scale is presently of Rs. 340 and above, viz. :

(a)

Junior Engineer.

(b)

Chemist Grade I/II.

(c)

Accountant/Assistant Accountant.

(d)

Routine Grade Clerk/Upper Division Assistant/Junior Noter and Drafter/Lower Division Assistant/Stenographer.

(e)

Tracer/Draftsman.

(f)

All Operating Staff cadre posts the minimum of whose scale is presently Rs. 340 and above.

(1-A) Promotion to all posts in Class III, including the posts in Operating staff cadre, whose seniority is maintained on State level and the minimum of whose scale is presently Rs. 485 and above.

Note. - For purposes of this sub-regulation Confidential Reports of eligible candidates along with their seniority list and reports relating to pending disciplinary proceedings and any other information relevant for the selection shall be furnished to the Commission by the concerned authorities.

(1-B) Notwithstanding anything in the foregoing sub-regulations, the Board may, in the interest of work, at any time order that recruitment/promotion to any post or service shall not be made through the Commission for such period as may be specified in the Order, and, unless there is already provision in the relevant regulations for making recruitment/promotion otherwise than through the Commission, the Order shall also specify the agency through which selection for direct recruitment/promotion shall be made.

(2)

The Commission will examine, interview, select and recommend suitable candidates in accordance with the criteria prescribed in the relevant regulations and if there are no regulations, in order of merit. Actual appointment orders will be issued by the appointing authority concerned.

(3)

The selection for recruitment/promotions shall be made as and when necessary.

(4)

It shall not be necessary to consult the Commission in the following matters :

(a)

transfers,

(b)

matters connected with disciplinary proceedings,

(c)

recruitment/promotion of persons, who at the time of commencement of these regulations had already been appointed/promoted after regular selection in accordance with the relevant regulations of the Board for the time being in force,

(d)

persons taken on deputation,

(e)

appointments which are not likely to last for a period of more than six months,

(f)

employees recruited under the State Government in accordance with the rules applicable under that Government and later absorbed in the Board's service.

4.

If there is anything inconsistent in these regulations with provisions contained in any other Board's Regulations these regulations shall prevail and the provisions contained in Board's other Regulations shall be deemed modified to the extent of such inconsistency.

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